Asharfi vs D.D.C. on 26 February, 2020

Author: Saumitra Dayal Singh

Bench: Saumitra Dayal Singh

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HIGH COURT OF JUDICATURE AT ALLAHABAD


AFR

Court No. - 68

Case :- WRIT - B No. - 17009 of 1984

Petitioners :- Asharfi & Ors.

Respondents :- D.D.C. & Ors.

Counsel for Petitioners :- Parmeshwar Yadav,Raghuvansh Misra

Counsel for Respondents :- K.N. Yadav,SC,Shamimul Hasnain

Hon'ble Saumitra Dayal Singh,J.
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1. Heard Sri Raghuvansh Misra, learned counsel for the petitioners and Sri K.N. Yadav, learned counsel appearing for the private respondents and learned Standing Counsel for the State-respondents.

2. The petition arises from consolidation proceedings, wherein a title claim was made by the petitioners in khata no.130 at Village-Bakuldiha, Tappa Sukarhar, Pargana Tilpur, Tehsil-Maharajganj, District-Gorakhpur (hereinafter also referred to as the 'agricultural holding in dispute'). Ram Nath, Ram Lagan and Ram Awadh were real brothers, born of Jagroop. All petitioners claim under Ram Lagan and all private respondents claim under Ram Nath.

3. By the impugned order dated 21.11.1984 passed by the Assistant Director of Consolidation, Gorakhpur, the petitioners' revision filed against the order dated 11.08.1978 (passed in appeal), by the Assistant Settlement Officer, Consolidation, Gorakhpur, has been dismissed. That appeal had been filed by the private respondents claiming under Pardesi (son of Ram Nath), against the order dated 03.10.1975, passed by the Consolidation Officer, Nichlaul, Gorakhpur who had allowed the title objections filed by the petitioners under Section 9-A of U.P. Act No.5 of 1954 (hereinafter

referred to as the 'Act').

4. The present petition had been filed by Asharfi, Shobha, Ramjeet, Gabbu, and Rajbali, all sons of Ram Lagan. During the pendency of the present petition, other than Shobha (who is petitioner no.2), the other petitioners died. No substitution has been sought by their legal representatives. Thus, the petition filed by Asharfi, Ramjeet, Gabbu and Rajbali has abated. At present, the writ petition has been pressed and is being heard only at the instance of Shobha/petitioner no. 2. On the other hand, respondent nos. 4 to 7 i.e. Shomai, Rangi Lal, Chandrika, and Mundrika, are all sons of Pardesi who was son of Ram Nath.

5. It is also undisputed, in the basic year khatauni, the aforesaid agricultural holding was found recorded in the name of Pardesi son of Ram Nath. The petitioners claimed:- the existence of a joint Hindu family of Ram Awadh, Ram Lagan and Ram Nath; the said joint Hindu family had sufficient common nucleus from another agricultural holding at village - Chiriya, at Gorakhpur, jointly recorded in the names of Ram Lagan and Ram Nath; the agricultural holding in dispute had been acquired from that common and sufficient nucleus. Therefore, merely because the name of Pardesi alone was found recorded in the basic year khatauni, it did not deprive the petitioners of title in the agricultural holding in dispute.

6. As to the existence of a joint Hindu family with sufficient common nucleus, the petitioners relied on evidence in the shape of kutumb register; oral evidence to establish:- other than a joint/common dwelling house of the parties at village-Bakuldiha and the agricultural holding in dispute, there was no other residential property of the petitioners and the respondents at that village; evidence of pre-existing joint khata at village-Chiriya, of Ram Lagan, and Ram Nath and; absence of evidence to doubt the same. To establish acquisition of the property in dispute (from such joint and sufficient nucleus), the petitioners relied on the statement of one Bhanu Pratap Singh, a brother of the erstwhile Zamindar - Ram Ugrah; receipts of payment of rent in the name of Asharfi, issued by Ram Ugrah; an agreement between the erstwhile Zamindar Ram Ugrah and Ram Nath for settlement of the agricultural holding in dispute, disclosing the status of Ram Nath as the karta of the joint Hindu family. A resolution of the Land Management Committee dated 10.06.1971; a final report in a theft case; membership register of a cooperative society disclosing title of Ram Lagan in the agricultural holding in dispute and a Panchayatnama dated 01.05.1954.

7. The above claim made by the petitioners was resisted by the respondents who submitted that Jagroop (father of Ram Lagan, Ram Awadh and Ram Nath), was a resident of village Chiriya; Ram Nath had migrated to village-Bakuldiha; the agricultural holding in dispute was self-acquired by Ram Nath; his name was recorded in the revenue records from 1345 fasli onwards, upon earlier settlement; no dispute was ever raised for a long period of time; after 40 years, a suit under Section 229-B of U.P. Zamindari Abolition & Land Reforms Act, 1950 (hereinafter referred to as the 'Zamindari Act') was filed; in the earlier settlement - in 1345 fasli, no objection was raised on behalf of Ram Lagan which clearly established that the objection raised in the consolidation operation was a mere after-thought. The evidence that was led by the petitioners was disputed. However, it may be noted, here itself, the respondents did not lead any positive evidence in support of any part of their defence.

8. The Consolidation Officer framed issues whether Asharfi and others were in possession and held Sirdari rights over the agricultural holding in dispute and also as to their respective share in the same. He clubbed and decided those issues together. While doing so, as to the existence of the joint Hindu family, he returned a finding in favour of the petitioners that the parties descended from a common ancestor Jagroop. The pedigree claimed, and the existence of a joint Hindu family was also acknowledged. Also, he inferred in the affirmative as to existence of the joint Hindu family - by referring to the kutumb register wherein name of Shomai, was found recorded as the owner of house no.53, along with Pardesi, Asharfi, Chandrika, Rangi, and Ram Lagan and others. In that regard, he also reasoned, other than the said residential house at village Bakuldiha, there was no other residential accommodation available to the parties and there was no other agricultural holding available to them either, at village Bakuldiha. Therefore, the continued existence of the joint Hindu family of the parties was found established, on such strong circumstantial evidence. Further, the existence of common and sufficient nucleus of that joint Hindu family was found established, in the shape of the property at village Chiriya, recorded jointly in the names of Ram Lagan and Pardesi.

9. Thereafter, the Consolidation Officer examined the issue of acquisition of the property at village-Bakuldiha. In that regard, the statement of Sri Bhanu Pratap Singh son of the erstwhile Zamindar and also the brother of Ram Ugrah, was considered. Referring to the same, the Consolidation Officer observed - Bhanu Pratap Singh proved settlement had been made in favour of Ram Awadh, Ram Lagan and Ram Nath jointly and that the receipt of rent had been issued to Asharfi (only), in a representative capacity. Reference was also made to the resolution of the Land Management Committee dated 10.06.1971 wherein it was resolved that the names of Ram Lagan had remained from being recorded, due to mistake and that both Ram Lagan and Ram Nath were joint owners of the family properties at Bakuldiha and Chiriya villages. Reference was also made to the final report submitted by the police in a criminal case wherein certain observations had been made to support the claim of possession. Reference had also been made to the membership register of a cooperative society, wherein there was a mention of the agricultural holding in dispute being jointly owned by Pardesi son of Ram Nath and Ram Lagan, being half share each. Thus, the issues of acquisition and common and sufficient nucleus were also decided in the affirmative.

10. It was thus concluded, the name of Ram Nath i.e. the father of the respondents alone came to be recorded only on account of the fact, he was the karta of joint Hindu family and not because he had exclusive title over the disputed property. On the issue of the source of acquisition, as noted above, the Consolidation Officer found that the joint Hindu family had sufficient common nucleus at village Chiriya from which the property at village-Bakuldiha, was acquired. Thus, the Consolidation Officer granted the relief claimed - to record the names of Asharfi, Shobha, Ramjeet, Rajbali, Gabbu, all sons of Ram Lagan along with the names of private respondents. He thus decided the title claimed by the petitioners, in their favour, vide order dated 03.10.1975.

11. The respondents carried the matter in appeal before the Assistant Settlement Officer, Consolidation, Gorakhpur, who, vide his order dated 11.08.1978, allowed their appeal in entirety. In doing so, he referred to the revenue entries in 1325 fasli wherein the name of Ram Nath alone was found recorded, upon the settlement made. Hence, the agricultural holding in dispute was held to be his individual property. The agreement dated 02.02.1934 relied upon by the petitioners in support

of their claim (that the settlement had been made in favour of Ram Nath in a representative capacity), was disbelieved owing to the fact that the plot numbers mentioned in that agreement did not exist on the date of execution of that agreement. In fact, those numbers first came into existence much later. The resolution of the Land Management Committee was also disbelieved as it was never authorized to adjudicate upon the rights of private parties. The suit proceedings under section 229-B of the Zamindari Act were found to have abated and therefore of no consequence. As to the common residence, though the fact of such common residence was found proved on the strength of the kutumb register, however, it was reasoned, that fact did not lead to a conclusion that there existed a joint Hindu family of the parties. It was held equally possible that the parties had acquired mutually exclusive rights and titles in different agricultural holdings. It was further held, the agricultural holding in dispute was not proved to have been acquired from a common and sufficient nucleus of the joint Hindu family of the parties.

12. Upon revision filed by the petitioners, the Assistant Director of Consolidation has rejected the revision by the impugned order. In doing so, he has largely reiterated the findings recorded by the Assistant Settlement Officer, Consolidation on the issue of the agreement dated 02.02.1934 and other aspects. However, he has also recorded other findings. Thus, it has been held, though the parties had a common ancestor Jagroop and though the parties may be members of one Hindu family, they were residing in different houses. Then, it has been found, merely because the parties were joint tenure-holders in village Chiriya, it did not lead to an inference that the agricultural holding in dispute was also a joint agricultural holding. Again, a fresh finding has been recorded by the Assistant Director of Consolidation - once Ram Nath started living at a different village i.e. Bakuldiha, the fact of the existence of the joint agricultural holding at village Chiriya had no bearing on his exclusive ownership over the property at village Bakuldiha. Also, therefore, his sons may not have been aware of any joint property existing in another village - Chiriya. On such reasoning, the issue of joint agricultural holding was found not-proven.

13. Learned counsel for the petitioners would submit that the Consolidation Officer had accepted the existence of a joint Hindu family of the parties to the dispute and also their joint living at village Bakuldiha. He had also found established the existence of common and sufficient nucleus of that joint Hindu family in the shape of their jointly held property, at village Chiriya. While such findings were based on evidence and material on record, the Assistant Settlement Officer, Consolidation and the Assistant Director of Consolidation reversed those findings without any evidence being led by the respondents either to doubt existence and continuance of the joint Hindu family or of any independent or separate income or source of income of Ram Nath. Even if the agreement dated 03.02.1934 is ignored, there was evidence on record to otherwise establish that the agricultural holding in dispute was a jointly-held property. That finding has been reversed not on the basis of the material and evidence on the record but solely on presumptions and conjectures.

14. Further, it has been vehemently emphasized, the petitioners had led strong evidence in support of their claim and thus established - there existed not only a joint Hindu family with common and sufficient nucleus but that the agricultural holding in dispute had been acquired therefrom. Yet, the respondents did not lead any evidence in rebuttal. Therefore, the finding recorded by the Assistant Director of Consolidation denying the existence of a joint Hindu family is grossly perverse. Further,

once the existence of the joint Hindu family stands established along with the existence of common and sufficient nucleus, a presumption in law, arose that the agricultural holding in dispute came to be acquired by the joint Hindu family from its common nucleus. Consequently, the onus of proof shifted upon the respondents to establish that Ram Nath had an independent and sufficient source of income from which he had acquired the agricultural holding in dispute. Since no evidence had been led to establish that the agricultural holding in dispute was acquired by Ram Nath from his independent source of income, the aforesaid presumption in law became absolute. In such proven facts, merely because the agricultural holding in dispute was found recorded in the name of Ram Nath would be of no consequence. Reliance has been placed on a decision of the learned Single Judge of this Court in Vishwanath Singh & Ors. Vs. Brij Mangal Singh & Ors., 1968 RD 396, to submit, under the law, as it existed when 1345 fasli had been prepared, it was permissible for a joint Hindu family to hold an agricultural holding. Then, relying on the Supreme Court decision in the case of Bhagwati Prasad Sah & Ors. Vs. Dulhin Rameshwari Juer & Anr., AIR 1952 SC 72, and two decisions of this Court in Madho Tewari Vs. Mata Din Tewari & Ors., AIR 1934 Oudh 293 and Abhaidat Singh & Ors. Vs. Ragho Indar Partab Sahai & Ors., AIR 1926 Oudh 77, it has been submitted, in absence of any partition of the joint Hindu family having been proven, the burden always rested on Ram Nath/Pardesi/private-respondents to establish that the said Ram Nath had any independent source/means to acquire exclusive title in the agricultural holding in dispute. That burden was not discharged. It had to be held that the agricultural holding in dispute was a joint Hindu family property recorded in the name of Ram Nath in his capacity as the karta of the joint Hindu family.

15. Besides, it has been submitted, the specific issue framed by the Consolidation Officer as to whether Asharfi and others were sirdars along with Pardesi, included within its ambit all other and ancillary and/or inter-linked issues pertaining to title claimed by the petitioners. Pleadings having been made and evidence having been led in support of the claim made by the petitioners as to joint ownership and the respondents having opposed the same with equal opportunity, there was no real or substantial defect in the order of the Consolidation Officer, who decided that issue in favour of the petitioners by holding that there existed a joint Hindu family that had acquired the agricultural holding in dispute, from its common and sufficient nucleus. Reliance has been placed on a decision of a Division Bench of this Court in Pritam Singh & Ors. Vs. Assistant Director of Consolidation & Ors., 1978 RD 327, to submit - non-framing of a specific issue may not be fatal to the final outcome of the proceedings.

16. It has also been submitted, the proceedings instituted by Ram Lagan under Section 229-B of the Zamindari Act, abated by operation of law. Its order and record were of no consequence inasmuch as, though such suit was decided against the petitioners, the appeal therefrom was pending when notification under Section 4(2) of the Act was issued and consequently, the appeal abated. Upon abatement of the appeal, nothing survived and no part of evidence recorded in that suit proceeding could ever be referred to, for the purpose of proceedings that were validly instituted under Section 9-A of the Act. Reliance has been placed on another decision of the learned Single Judge of this Court in Kamta Singh & Ors. Vs. Ganesh Prasad Dube & Ors., 1967 RD 261, to submit, upon abatement, no reliance could be placed on any pleadings or evidence that may have been led in the proceedings that stood abated. Further reliance has been placed on a Full Bench decision of this

Court in Shyam Sunder Lal Vs. Shagun Chand AIR, 1967 All 214 (FB), to submit, appeal proceedings are a continuation of suit proceedings. Thus, relying on these two decisions, it has been submitted that the abatement of the appeal amounts to abatement of the suit.

17. Learned counsel for the private respondents would submit, the claim made by the petitioners had been inconsistent at many stages. In that regard, it has been submitted that, at the stage of the Consolidation Officer, two objections were raised. First being - Ram Awadh died issue-less and Asharfi was claimed to have been adopted by the said Ram Awadh. First objection filed by Asharfi was to that effect. The second objection was filed being the one that has given rise to the present writ petition claiming under a joint Hindu family. The petitioners only pressed their second objection and Asharfi did not press the claim arising from the alleged adoption. In that regard, it has been submitted that the reasoning given by the Consolidation Officer, as to the existence of the joint Hindu family and joint ownership, is contradicted by his own findings inasmuch as, though Jagroop left behind three sons namely Ram Awadh, Ram Lagan and Ram Nath, however, while passing the order, the Consolidation Officer has apportioned half share each to the branches of Ram Nath and Ram Lagan only, without any share being assigned to the branch of Ram Awadh.

18. Second, it has been submitted, the Consolidation Officer never framed any issue whether the property in dispute had been acquired by the joint Hindu family from its common and sufficient nucleus. In absence of such an issue having been first framed, it has been submitted, Rule 26 of the U.P. Consolidation of Holdings Rules, 1954 (hereinafter referred to as the 'Rules'), stood violated. The defect being incurable, the order of the Consolidation Officer recording a finding on such issue was wholly vitiated.

19. Third, referring to the agreement dated 3.2.1934, it has been submitted, wholly bogus evidence had been set up by the petitioners, inasmuch as, plot numbers mentioned therein, did not exist on the date of that agreement. Similarly, the resolution of the Land Management Committee dated 10.06.1971 was without necessary approval whereas the respondents' claim stood proved by revenue entries of 1351 fasli. Also, the name of Pardesi was found recorded in 1345 fasli upon settlement made and, therefore, there was clear evidence of the fact that thereafter, Pardesi had exclusive ownership over the agricultural holding in dispute. Much emphasis was laid on the fact that no objection came to be filed by Ram Lagan to the settlement made in 1345 fasli. Reference has also been made to certain evidence that came to be recorded in the proceedings under Section 229-B of the Zamindari Act.

20. Reliance has been placed on a Full Bench decision of this Court in Bijai Narain Singh & Ors. Vs. State, AIR 1970 All 241; Shivraji Vs. Deputy Director of Consolidation Allahabad, 1997 (88) RD 562; Sita & Ors. Vs. State, AIR 1969 All 342 and a decision of a learned Single Judge of this Court in Chandra Bhan Vs. Deputy Director of Consolidation & Ors., 2006 (1) ADJ 499 (All), to submit that consolidation authorities are courts and therefore, it was necessary for the Consolidation Officer to have framed an issue as to whether there existed a joint Hindu family with common and sufficient nucleus from which, the agricultural holding in dispute may have been acquired. Since that issue was never framed, the findings recorded by the Consolidation Officer were wholly without jurisdiction.

21. Having heard learned counsel for the parties and having perused the record, in the first place, it appears proper to deal with the objection whether the proceedings suffered from a fatal defect on account of the non-framing of the issue, as urged by learned counsel for the private respondents. All the decisions that have been relied upon by learned counsel for the respondents, authoritatively hold that the consolidation authorities act as courts exercising judicial or quasi-judicial power to adjudicate vital property rights. To that proposition, there can be no quarrel.

22. However, by way of a principle, merely because consolidation authorities are courts, it does not logically follow - while dealing with the matters that come to those authorities, they must first frame issues. Framing of issues prior to adjudication of rights is a matter of procedure whereas treatment of the consolidation authorities as courts is the conferment of a status. The two are not inter-dependent and therefore may not necessarily co-exist. Merely because the status of an adjudicatory authority may be found to be that of a court, it may never lead to an inference that such authority must necessarily frame issues before adjudicating the dispute brought before it. Vice versa, merely because an authority may be required to frame an issue under the relevant rule of procedure, it may not be conferred the status of a court, merely on that requirement of procedure.

23. At the same time, for the present purposes, Rule 26 of the Rules, does require framing of an issue before adjudication of any claim made under Section 9-A of the Act. Thus, irrespective of the status of consolidation authority, as a court or otherwise, it cannot be disputed that issues were required to be framed by the Consolidation Officer before he could have proceeded to adjudicate the objections raised by the petitioners, under Section 9-A of the Act.

24. As a fact, perusal of the order dated 03.10.1975 clearly brings out that the Consolidation Officer framed three issues. The second issue as framed, was specific - whether Asharfi and others i.e. the petitioners were sirdars in possession over khata no.130 i.e. the agricultural holding in dispute. The third issue was framed to determine the shares of the parties, inter se. Thus, it cannot be said that the Consolidation Officer had proceeded to adjudicate the objections filed by the petitioners, without framing issues. All that survives for consideration is whether issue nos. 2 and 3, as framed by the Consolidation Officer permitted the Consolidation Officer to adjudicate whether there existed a joint Hindu family between the parties with common sufficient nucleus from which the agricultural holding in dispute may have been and, in fact, had been acquired.

25. In view of the second issue as framed by the Consolidation Officer, the objection being raised by learned counsel for the private respondents appears to be too technical and not substantial. Once, the Consolidation Officer had framed an issue, whether the petitioners were sirdars in possession over the agricultural holding in dispute, that issue necessarily included within its spread, consideration of the right or title claimed by them in that agricultural holding as members of a joint Hindu family. The petitioners had claimed the title as members of joint Hindu family. Such plea had been specifically raised by the petitioners. Upon issues being framed, they also led evidence to establish the existence of such a state of their family. Further pleadings were made and evidence was led to establish that that joint Hindu family had a common and sufficient nucleus from which the agricultural holding in dispute had been acquired.

26. Thus, the respondents were made aware of the exact nature of rights being claimed by the petitioners - through pleadings made, issues framed and evidence led. They had not been taken by any surprise inasmuch as the pleading and evidence led before the Consolidation Officer were specific as to the nature of the claim being made by the petitioners. Also, it cannot be forgotten that the rule of procedure mandates framing of issues by the Consolidation Officer before he may proceed to adjudicate the claim before him. However, once a substantive issue has been framed, purely ancillary issues or inherently-linked issues or issues reflecting different aspects of the issue already framed, which may become necessary to be dealt with while deciding an issue already framed, may never require framing of a separate or sub-issue/s as that would become a matter of pure technicality.

27. Rules of procedure remain handmaids of justice. They can never be applied to defeat the fair course of justice.

28. The Consolidation Officer had framed issues whether Asharfi and others were in possession and held sirdari rights over the agricultural holding in dispute and also as to their respective share in the same. Insofar as the petitioners had set up a claim of sirdari rights - as members of joint Hindu family, over the property in dispute, there was no real or fatal defect in the proceedings on account of non-framing of a further issue, to specifically test the basis of that claim - being existence or otherwise of a joint Hindu family with common and sufficient nucleus. Those aspects became necessary and were inherently required to be dealt with and decided solely due to the peculiar facts, pleadings made, evidence-led and arguments advanced by the parties with respect to the issue framed and not on account of any argument advanced, independent of the pleadings made or issues framed.

29. While the petitioners claimed the existence of sirdari rights over the agricultural holding in dispute, in favour of their joint Hindu family that had sufficient common nucleus, the respondents disputed and denied the same. All three authorities have dealt with and decided that issue upon reference to respective and competing claims of both sides. The objection thus raised by learned counsel for the respondents is found to be purely technical and not substantial. It is accordingly rejected.

30. The next objection that may be dealt with, is the effect of abatement of the proceedings instituted under Section 229-B of the Zamindari Act. There can be no denial of the proposition that a statutory appeal is a continuation of a suit. Admittedly, in this case, the petitioners' appeal against dismissal of their suit filed under Section 229-B of the Zamindari Act, was pending on the date of issue of notification under Section 4(2) of the Act. Also, it cannot be denied that objections filed under Section 9-A of the Act were in the nature of a suit. It is also well settled, in view of Bibi Rehman Khatoon Vs. Harkoo Gope, (1981) 3 SCC 173 (following Ram Adhar Singh Vs Ramroop Singh; Chattar Singh Vs Thakur Prasad Singh (1975) 4 SCC 457 and; Satyanarayan Prasad Sah Vs St. of Bihar (1980) Suppl SCC 474), issuance of a notification commencing consolidation operation, would abate the proceedings pending, whether in a suit, or an appeal or a revision arising therefrom. Also, by virtue of the plain language of the statute as unequivocally interpreted by the Supreme Court, that event would abate the suit proceedings itself. Resultantly, the findings recorded by the

trial court lost all legal relevance and consequence and colour.

31. The abatement created by Section 5 of the Act is the special and peculiar variety of abatement. It is in contrast to the abatement generally, under the Civil law, which in the first confines to the forum stage - at which the proceeding is found, when the event, giving rise to abatement occurs. Thus, under the general Civil law, upon the death of the sole respondent during an appeal, in the event no substitution is sought by the appellant, the appeal alone would abate. It would not have any adverse impact or effect on the decision made at the immediately preceding stage. On the contrary, that decision would attain finality between the parties. Second, in the alternative case of any part of the cause of action in the appeal surviving against other respondents to the appeal, the effect of abatement would not attach to those parties against whom the appeal proceedings may be continued, as before. The same principle would obviously apply to suit proceedings, where in case of a sole defendant, upon abatement the suit would not survive for consideration but in case of some of the parties surviving, the suit may also survive.

32. However, under the Act, upon issuance of notification under Section 4(2) of the Act, subject either to a suit or appeal or revision being pending, the suit proceedings itself would abate, in entirety. Such abatement arises by operation of law and not owing to any act or omission by any of the parties. As a consequence, the clock is set at naught. All rights that may have been contested and even adjudicated in such suit and which may be pending consideration in an appeal or revision, would have to be contested de-novo, in proceedings that would have to be instituted afresh, before the proper consolidation authorities. Thus, in a given case, where abatement arises at the stage of a Civil revision, fresh objections would have to be filed under Section 9-A(2) or Section 12 of the Act, as the case may be, and the legal effect of the earlier decision made, up to the stage of appeal would stand completely wiped out - as if it had never taken place.

33. In the present case, the petitioners' predecessor-in-interest had instituted a suit under Section 229-B of the Zamindari Act and that suit was dismissed. It is an undisputed position that a further appeal from that order was preferred and during the pendency of that appeal a notification under Section 4-A(2) of the Act, came to be issued. Thus, it has to be accepted that suit proceedings as were being continued in appeal (when notification under section 4(2) of the Act was issued), abated upon commencement of consolidation operation under the Act. Therefore, no benefit may be claimed by the respondents by placing blind reliance on the findings recorded in the suit proceedings. Thus, in the facts of the present case, in absence of any objection or doubt as to the applicability of Section 5(2)(a) of the Act, the suit proceedings instituted under Section 229-B of the Zamindari Act stood completely abated. The pre-existing decision of the trial court in that suit proceeding (that was adverse to the petitioners), cannot be looked into in subsequent proceedings instituted under the Act.

34. Then, statements that may have been received in evidence in proceedings under Section 229-B of the Zamindari Act, could not also be blindly relied upon in the proceedings under the Act and/or read as evidence, at the stage of hearing of the objections filed under Section 9-A of the Act. There is no statutory provision to support such a course. It is not the case of the respondents that any circumstance existed or steps were taken or any effort was made by them to read any evidence

received in the abated proceedings - as evidence in the proceedings under the Act. Therefore, it never became open to the respondents to refer to or to rely upon any evidence (led in proceedings under Section 229-B of the Zamindari Act), at the stage of hearing in the proceedings under the Act. Unless the respondents had first applied and brought on record certified copies of any statement received in evidence (in the abated proceedings), and thereafter made out a case for the same to be read as evidence in the proceedings under the Act, it never became open to the respondents to rely on the same. Therefore, that objection raised on that count is also rejected.

35. In any case, the statements of Ram Lagan and Bhanu Pratap Singh recorded in proceedings under Section 229-B of the Zamindari Act, have not been made part of the record of the writ proceedings. It is equally not clear if certified copies of those statements (in entirety), were even brought on record by the respondents, in the consolidation proceedings, or if any application had been filed by them to receive on record and read that evidence, in the present proceedings or if any order was passed by any of the consolidation authorities to admit on record such evidence. A perusal of the order passed by the Consolidation Officer clearly suggests otherwise as there is no reference to the same. The order of the Assistant Settlement Officer, Consolidation neither refers to any ground pressed before him to assert that such evidence though on record had not been considered nor it mentions any application that may have been filed to bring on record such statements and/or to consider them. He has still merely referred to the part of those statements in his order dated 11.08.1978. Clearly, that appears to have arisen during the course of the hearing. It was not permissible as such statements or extracts, even if existing, never became part of the record of the proceedings under section 9-A of the Act. Hence, the same could not have been referred to or relied upon.

36. In any case, a perusal of the extracts of those statements, even if considered, reveals, Ram Lagan had probably only stated that no written document had been prepared with respect to the settlement made (by the erstwhile zamindar). Only receipts were issued. He also appears to have stated, "jahan khet likha gaya vahan mai nahi tha mere bhai the". If made, without anything more, it was quite an open statement. On the other hand, Bhanu Pratap Singh in his statement appears to have stated, Ram Nath, Ram Lagan, and Ram Awadh were present when the settlement of the lands was made. He further appears to have stated that the settlement had been made in favour of all three brothers. From such extracts of statements, even if they were made during the regular suit proceedings and even if they could be read in evidence in Section 9-A proceedings, the Assistant Settlement Officer, Consolidation, could not have inferred that there was a contradiction in the statement of Ram Lagan to the extent of having denied any settlement made in his favour jointly along with his two brothers Ram Nath and Ram Awadh.

37. While Bhanu Pratap Singh appears to have made a positive assertion even at that stage, in favour of Ram Lagan, it is not clear whether Ram Lagan denied the factum of settlement made in his favour (along with his two brothers) or he was merely stating that he was not physically present at the time of settlement being drawn or that though the settlement was made jointly in favour of three brothers, he (Ram Lagan) did not remain physically present. It was too presumptuous if not outrightly preposterous to draw the conclusion that Ram Lagan denied settlement in his favour. Therefore, the finding of the Assistant Settlement Officer, Consolidation is clearly perverse. Also, as

noted above, since the statements of Ram Lagan and Bhanu Pratap Singh as recorded in the proceedings under Section 229-B of the Zamindari Act were not received in evidence in the proceedings under the Act, there never arose any occasion for consideration of that evidence or for any further cross-examination of either of those witnesses. For that reason also, no adverse inference could have been drawn against the petitioners.

38. The adverse inference recorded by the Assistant Settlement Officer, Consolidation as confirmed by the Assistant Director of Consolidation, on the basis of society membership register, the final report submitted by the police and other documents that were also relied upon by the petitioners etc., even though accepted as correct, could not lead to any further conclusion of the entire claim set up by the petitioners being false inasmuch as a primary claim made by the petitioners was of the existence of joint Hindu family with common and sufficient nucleus from which the agricultural holding in dispute had been acquired. That claim survived for consideration on the basis of other evidence.

39. As to the core issue, whether there existed a joint Hindu family between the petitioners and the respondents, there is no evidentiary basis shown to exist for the findings recorded by the Assistant Director of Consolidation that the petitioners and the respondents resided in different houses or that there were two houses. Plainly, that finding is perverse. That matter was squarely dealt with on the strength of evidence led before the Consolidation Officer and which finding was also not disturbed by the Assistant Settlement Officer, Consolidation - that other than house no. 53 at village - Bakuldiha, the parties did not have any other house in that village. While the petitioners consistently claimed and proved that they had a common dwelling with the respondents at house no. 53 at village - Bakuldiha, remarkably, the respondents did not rebut that evidence and did not lead any evidence to establish that the petitioners resided at village - Chiriya. Thus, the finding recorded by the Assistant Director of Consolidation negating the existence of the joint Hindu family has been drawn out of thin air and it cannot, therefore, be sustained. In fact, it has to be ignored. In absence of any evidence being shown to have led by the respondents, and the Assistant Director of Consolidation also having not referred to any other material to draw his own independent inference, it is not for this Court to remand the matter for fresh decision on this issue.

40. On the contrary, the finding recorded by the Consolidation Officer as sustained by the Assistant Settlement Officer, Consolidation as to the existence of the joint Hindu family was based on evidence. Thus, for the purpose of the decision in the writ petition, the existence of the joint Hindu family between the petitioners and the respondents has to be accepted. Further, there is a complete absence of any pleading and/or evidence led by the respondents to establish that there ever occurred a partition of the joint Hindu family. Upon its existence being found established, the joint Hindu family is deemed to have continued at the time when the dispute arose.

41. The next core issue required to be examined was whether the property in dispute came to be acquired by the joint Hindu family from a common and sufficient nucleus. In that regard, some part of the evidence relied upon by the petitioners was plainly unacceptable inasmuch as neither the agreement dated 02.02.1934 nor the resolution of the Land Management Committee nor the membership record of the cooperative society nor the oral statement of Bhanu Pratap Singh nor the

police report may have been read as evidence to establish such fact. Yet, the petitioners were able to prove the prior existence of agricultural holding at village - Chiriya held by their joint Hindu family. The respondents do appear to have pleaded that upon their predecessor-in-interest Ram Nath having migrated to village - Bakuldiha, his successors may have lost track of the property at village - Chiriya. However, it remained unexplained and undisputed that the name of their predecessor Pardesi continued to be recorded in the property at village - Chiriya. It thus did stand proven that there existed a joint Hindu family with a common nucleus at village Chiriya. They did not lead any evidence to doubt the claim made by the petitioners' that that property comprised sufficient nucleus to acquire the agricultural holding in dispute.

42. In such state of proven facts where the existence of joint Hindu family with common nucleus stood established which was also claimed to be sufficient by the petitioners as to provide the means for the acquisition of the agricultural holding in dispute, the burden lay solely on the respondents to establish that Ram Nath had sufficient means of his own from which he acquired the agricultural holding in dispute. No evidence whatsoever was led by the respondents that the said Ram Nath had any independent means to acquire the property at village - Bakuldiha. In such facts, the burden to establish exclusive ownership over the agricultural holding in dispute as claimed by the respondents remained undischarged.

43. Also, being faced with the presumption as to joint and common ownership under a joint Hindu family, the claim of exclusive ownership remained a special fact which when established could lead to the inference of the disputed property having been acquired not by the joint Hindu family but by any one of its members, in his individual capacity. Since, undisputedly, the property was found recorded in the name of Ram Nath who was the eldest member of such a joint Hindu family, the exclusive burden to establish such special fact, would remain with the person who set up that plea being Ram Nath and/or his successor-in-interest. In absence of any evidence led to establish such a special fact, the agricultural holding in dispute would remain the joint Hindu family property. It has to be accepted that all members of the joint Hindu family drew earnings from the agricultural holding at village - Chiriya, only.

44. It was not even an issue between the parties whether the joint Hindu family could or could not hold agricultural holding. In any case, that position stands settled in favour of the petitioners as rightly referred to by learned counsel for the petitioners in Vishwanath Singh & Ors. (supra).

45. The fact that such property was recorded in the name of karta of the joint Hindu family or the further fact that such revenue entry was not disputed for a long period of time, would not give rise to any other conclusion, inasmuch as, in absence of any statutory provision and/or any binding adjudication to that effect, there was no ground to exclude the property from the ownership of the joint Hindu family. It remained to be established by Ram Nath or his successors-in-interest - that the said Ram Nath had acquired it from his own individual income and not from the gains of the joint Hindu family. That was clearly not done. The same consequence must follow and be strictly applied to the situation emerging from the records of 1345 fasli. It must be borne in mind that, at that time, there was no embargo in law against the joint Hindu family being recorded as the sirdar of an agricultural holding. Further, there was no embargo in law in such property being recorded in the

name of the karta of such a joint Hindu family. That being the state of law, the fact that the petitioners or their predecessors-in-interest did not object to the property in dispute being recorded solely in the name of Ram Nath for a long period of 40 years, is really of no consequence. The parties were members of a joint Hindu family and their interest was being fully represented through the karta. The revenue entry in favour of the karta was also a representative entry in favour of all members of the joint Hindu family. Therefore, in fact, the petitioners or their predecessors-in-interest may not have had any occasion to file any objections or suit, till disputes arose. It is only when dispute and differences may have arisen between the members of the joint Hindu family that the cause of action would have first arisen. That cause of action certainly appears to have arisen at the stage of the consolidation operation or even before that when Ram Lagan filed suit under Section 229-B of the Zamindari Act.

46. Therefore, upon the dispute having arisen, the claim as to title had to be examined on its own strength and merits, without being prejudiced by the fact that such objection or claim had not been raised at an earlier point of time. It has further to be kept in mind that no statutory presumption as to individual ownership of Ram Nath arose, by way of completion of settlement of the first leg of proceedings. In absence of any evidence shown to have been led by the private respondents to prove the individual ownership of Ram Nath, remand at this stage would be futile, besides being wholly belated, as decades, not years have passed since the dispute arose. Then, the parties have remained in dispute and there is no possibility of any evidence arising as may allow for any different conclusion of fact to be recorded, now.

47. Last, the error claimed to be existing in the order of the Consolidation Officer in having awarded half share each to the petitioners and the respondents and completely ignoring the claim of Ram Awadh, has no bearing on the present decision, inasmuch as it is not disputed that, during consolidation operation, the legal representatives of Ram Awadh entered into a compromise whereby they gave up their rights in the agricultural holding in dispute. Therefore, the Consolidation Officer did not commit any error in reaching the conclusion that the agricultural holding in dispute be divided equally between the petitioners and the respondents.

48. The writ petition accordingly succeeds and is allowed as below. The order dated 21.11.1984 passed by the Assistant Director of Consolidation and the order dated 11.08.1978 passed by the Assistant Settlement Officer, Consolidation are set aside insofar as those orders affect the rights of petitioner no. 2 Shobha only. In view of the reasoning given above, the order passed by the Consolidation Officer dated 03.10.1975 is affirmed to that extent only.

49. In the facts of the case, there shall be no order as to costs.

Order Date :- 26.2.2020 Shubham/Prakhar/Abhilash